

TRADEBASE TERMS OF SERVICE

Effective Date: November 25, 2025

This Terms of Service Agreement ("Agreement") is a legally binding contract between you ("User," "you," or "your") and TradeBase ("Company," "we," "us," or "our"). By accessing, registering with, or using the TradeBase application, website, or services (collectively, the "Service"), you acknowledge that you have read, understood, and agree to be bound by this Agreement.

If you do not agree to these terms, you must not access or use the Service.

1. **ELIGIBILITY** You represent that you are at least eighteen (18) years of age and have the legal authority to enter into this Agreement.

2. **SERVICE DESCRIPTION** TradeBase provides digital tools for managing invoices, estimates, photos, documents, job records, and related operational tasks. TradeBase does not perform contractor services and does not provide legal, accounting, tax, or business advice.

You assume sole responsibility for your actions, invoices, pricing, compliance with laws, and business operations.

3. **ACCOUNT RESPONSIBILITY** You are solely responsible for maintaining the confidentiality of your credentials and all activities under your account.

4. **ACCEPTABLE USE** You agree not to: - Violate any laws; - Submit false or fraudulent invoices; - Upload unlawful or harmful content; - Disrupt or exploit the infrastructure; - Reverse engineer or replicate any system.

Violation may result in suspension or permanent termination with no refund.

5. **FEES, BILLING, AND TERMINATION** Subscription fees are billed in advance and non-refundable unless required by law. The Company may modify pricing with reasonable notice. Accounts may be terminated for non-payment or violation.

6. **DATA OWNERSHIP AND EXPORT** Users retain ownership of their data. Users located in Maine are entitled to export their data at any time. Upon termination, data may be deleted at the Company's discretion after a reasonable retention period.

7. **SYSTEM RELIABILITY** Services are provided "AS IS" and "AS AVAILABLE." No uptime or data retention guarantees are made.

8. **DISCLAIMER OF WARRANTIES TO THE MAXIMUM EXTENT PERMITTED BY LAW, ALL WARRANTIES ARE DISCLAIMED, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.**

9. **LIMITATION OF LIABILITY** IN NO EVENT SHALL TRADEBASE BE LIABLE FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES. TOTAL LIABILITY SHALL NOT EXCEED AMOUNTS PAID IN THE PREVIOUS THIRTY (30) DAYS.

10. **INDEMNIFICATION** You agree to indemnify and hold harmless TradeBase from all claims, damages, or losses arising from your use of the Service.

11. **INTELLECTUAL PROPERTY** All intellectual property rights belong to TradeBase. Unauthorized use is prohibited.

12. **TERMINATION** We may suspend or terminate user accounts at our sole discretion.

13. DISPUTE RESOLUTION BY ARBITRATION Any controversy arising from this Agreement shall be resolved by binding arbitration administered by the American Arbitration Association under its Commercial Arbitration Rules. Users waive the right to participate in any class action lawsuit.

14. GOVERNING LAW AND VENUE This Agreement shall be governed by the laws of the State of Maine.

15. ENTIRE AGREEMENT This Agreement constitutes the entire agreement between you and TradeBase and supersedes all prior agreements.

16. SEVERABILITY If any provision is held unlawful, the remaining provisions remain valid.

17. CONTACT Support Contact: support@trade-base.biz